

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
<http://www.courts.state.nh.us>

Court Name: _____
Case Name: _____
Case Number: _____ Charge ID: _____
(if known)

PETITION TO ANNUL RECORD:
Offenses Resolved Prior to 01/01/2019

In accordance with RSA 651:5, the applicant requests that the Court annul the record of arrest and charge, and if applicable, conviction and sentence in the following matter:

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name: Maria-Alejandra O'Shaughnessy-Whitfield		Date of Birth: 1968-12-31	
Address: 1188 Upper Notch Crossing Road, Apartment 14B			
City/Town NH	State NH	Zip Code 03801-2214	Telephone Number:
E-mail Address: (optional) maria.alejandra.oshaughnessy.whitfield@longmailexample.org			

CHARGE INFORMATION				
For the charge that you are seeking to annul, list the RSA (statute) violated, name of crime/offense, date of offense, date of conviction or other disposition, date all terms and conditions of the sentence were completed, and disposition (sentence) imposed by the Court:				
RSA/Statute:	Charge:	Charge Date:	Date of Conviction or Other Disposition:	Date Sentence Completed:
Description of Sentence or other Disposition:				

Case Name: _____

Case Number: _____

PETITION TO ANNUL RECORD

APPLICANT'S CERTIFICATION
(Select all checkbox that applies)

- ☐ The applicant was **not convicted** of the above crime/offense, and seeks only annulment of any record of arrest and/or charge.
- ☐ The applicant was **convicted** of the above crime/offense, and seeks annulment of any record of arrest, the offense/charge, conviction and sentence, and the applicant represents to the Court that:
- ☐ All the terms and conditions of the sentence listed above have been completed, including the payment of any fine, restitution or other cost, any period of good behavior, any probation period and any suspended sentence imposed by the Court.
- ☐ The time requirements for an annulment under RSA 651:5, III have been met for the crime for which the applicant has been convicted.
- ☐ Since completing the terms and conditions of the sentence imposed by the Court in these matters, the applicant has not thereafter been convicted of any other crime, except a motor vehicle offense classified as a violation, not including driving while intoxicated under RSA 265-A:2, I, RSA 265:82 or RSA 265-82-a.
- ☐ There are currently no charges pending against the applicant in any other Court, except:
- _____
- _____
- ☐ None of the charges sought to be annulled involve a violent crime, a felony crime of obstruction of justice, or an offense for which an extended term of imprisonment under RSA 651:6 was imposed.
- ☐ The charge sought to be annulled does not have an enhanced penalty for a second conviction.
- ☐ The time requirements for all offenses of which I have been convicted have been met.

After considering the investigation and report prepared by the Department of Corrections and any response filed by the State, the Court may make a decision on your Petition to Annul Record without a hearing. If you are requesting a hearing before a judge, please check the box. ☐

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge.

Date

Applicant's Signature

Name of Counsel

Counsel's Signature

Address

Address

Case Name: _____

Case Number: _____

PETITION TO ANNUL RECORD

FOR COURT USE ONLY:

ON THE PETITION TO ANNUL RECORD OF ARREST OR CONVICTION AND SENTENCE

The Court having found that notice of the forgoing petition was given in accordance with law, and having reviewed the investigative report of the Department of Corrections made in accordance with statute, finds that annulment of the applicant's record will assist in the applicant's rehabilitation and will be consistent with the public welfare and the requirements of law,

IT IS THEREFORE ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT

☐ That the record of arrest is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ That the record of the charge and disposition of dismissal, acquittal or nolle prosequi in the above referenced matter, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ That the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

CC: ☐ Prosecutor

☐ Defense Attorney

☐ DMV

☐ _____ Police Department

☐ Attorney General

☐ Sentence Review

☐ Defendant

☐ Dept. of Safety – Criminal Records

☐ Dept. of Corrections

☐ Other _____

☐ _____ District Division #

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Court Name: _____
Case Name: _____
Case Number: _____
(if known)

MOTION FOR WAIVER OF FILING FEE

I, Maria-Alejandra O'Shaughnessy-Whitfield, hereby request that the Court waive the filing fee in this case as I do not have the financial ability to pay these fees at this time.

I have completed a Statement of Assets and Liabilities which is being filed with this motion.

In support of this motion, it is stated as follows:

Wherefore, it is respectfully requested that this Court waive the filing fee in this case.

Name of Filer

Signature of Filer

Date

Law Firm, if applicable

Bar ID # of attorney

Telephone

Address

E-mail

City

State

Zip code

Case Name: _____

Case Number: _____

MOTION FOR WAIVER OF FILING FEES

FOR COURT USE ONLY

☐ Motion Granted.

☐ Motion Denied

☐ Motion granted, in part. Filing fee reduced, party to pay \$ _____

Date

THE STATE OF NEW HAMPSHIRE
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Court Name: _____
Case Name: _____
Case Number: _____
(if known)

**STATEMENT OF ASSETS AND LIABILITIES
FOR INDIVIDUALS AND SOLE PROPRIETORS**

1. Name: Maria-Alejandra O'Shaughnessy-Whitfield DOB: 1968-12-31
2. Residence Address: 1188 Upper Notch Crossing Road, Apartment 14B
3. Mailing Address (if different): _____
4. Marital Status: ☐ Single ☐ Married ☐ Separated ☐ Widowed
5. List the names, ages, relationships of dependents you support:

6. If you are presently employed, state where and for how long: _____ ☐ Full-Time ☐ Part-Time
7. If unemployed, state last date of employment: _____
8. When do you anticipate new employment? _____
9. If your spouse is presently employed, state where and for how long? _____ ☐ Full-Time ☐ Part-Time
10. If spouse unemployed, state last date of employment: _____
11. List other employed household members and their weekly income: _____

12. Please state weekly take-home amount	Yours	Spouse's
Salary/Wages	\$ _____	\$ _____
Child Support	\$ _____	\$ _____
Alimony	\$ _____	\$ _____
Trust Benefits	\$ _____	\$ _____
Investment Income	\$ _____	\$ _____
Other	\$ _____	\$ _____
*Social Security	\$ _____	\$ _____
*Welfare Benefits	\$ _____	\$ _____
*Veteran's Benefits	\$ _____	\$ _____
*Pension	\$ _____	\$ _____
**Unemployment Compensation	\$ _____	\$ _____
**Worker's Compensation	\$ _____	\$ _____
Total	\$ _____	\$ _____

13. What money is presently available to you?
- | | |
|--------------------------------|-----------------|
| Cash on hand | \$ _____ |
| Checking account | \$ _____ |
| Savings account | \$ _____ |
| Stocks/Bonds/IRA/Pension | \$ _____ |
| Total | \$ _____ |

Case Name: _____

Case Number: _____

STATEMENT OF ASSETS AND LIABILITIES FOR INDIVIDUALS AND SOLE PROPRIETORS

14. Please state your **monthly** household expenses:

Rent/Mortgage	\$ _____	Cell Phone	\$ _____
Property Taxes	\$ _____	Clothing	\$ _____
Heat	\$ _____	Transportation	\$ _____
Food	\$ _____	(including gas, maintenance, insurance, repairs)	
Utilities	\$ _____	Other (specify)	
Medical/Dental	\$ _____	_____	\$ _____
Insurance	\$ _____	_____	\$ _____
Total	\$ _____		

15. List any real estate you own, its market value and the amount you owe:

16. List any vehicles you own (car, truck, boat, motorcycle, snowmobile, RV), their market value and the amount you owe:

17. List income tax paid last year: \$ _____

18. List income tax refund received last year: \$ _____

19. Other than monthly household expenses, list any bills you owe, amount owed, to whom, and monthly payment:

20. List which of your bills are court-ordered payments (i.e. alimony, judgment in a law suit, etc.):

21. Other than those previously mentioned, list anyone to whom you owe money, amount and when it is due:

22. If anyone owes you money, state name, address, amount due, and when due:

23. List any property you have transferred within the last three years, to whom and for what price:

24. List any other assets or expenses not previously mentioned:

* Exempt income – The Court may not consider this income. If this represents the sole source of income, the court may not issue a payment order.

** Potentially/partially exempt income – The Court may be unable to consider this income. Based upon the facts of the case, the Court may or may not issue a payment order.



State of New Hampshire Criminal Records Unit

Department of Safety
DIVISION OF STATE POLICE

33 Hazen Drive, Concord, NH 03305

CRIMINAL HISTORY RECORD INFORMATION RELEASE AUTHORIZATION FORM

INSTRUCTIONS

NH RSA 106-B:14 and Administrative Rule Saf-C 5700 authorizes the dissemination of NH Criminal History Record Information (CHRI) for non-criminal justice purposes. In NH, all CHRI is confidential and released only upon the knowledge and permission of the individual of whom the request is made. Individuals requesting their own record in person need only to complete Section I. If the CHRI is to be released to a third party, both Section I and Section II must be completed. All requests by mail must have both sections completed and Section II notarized.

SECTION I (PLEASE PRINT CLEARLY)

Name: _____
LAST (MAIDEN/ALIAS) FIRST MI

Address: _____

STREET/CITY/STATE/ZIP CODE

Date of birth: 1968-12-31 Sex: _____

Hair color: _____ Eye color: _____

Driver license number: _____ State: _____

PURPOSE OF RECORD: Housing Employment
Annulment/Expungement

Other _____

My signature below certifies I am the individual listed above and the information provided is true

YOUR SIGNATURE: _____ DATE _____
Signed under penalty of perjury which may include a fine or imprisonment or both.

SIGNATURE OF PERSON/ENTITY TO RECEIVE RECORD DATE _____

SECTION II

I hereby authorize the release of my criminal record conviction(s), if any, to the following individual:

NAME OF PERSON/ENTITY TO RECEIVE RECORD

Address: _____

STREET/CITY/STATE/ZIP CODE

YOUR SIGNATURE DATE

Notary not required pursuant to RSA 106-B:14, I(c) when electronically filed in Guardianship cases.

NOTARY'S SIGNATURE DATE
(AFFIX Seal) (comm. Exp.)

RECORD CHALLENGE

Saf-C 5703.12 Procedure for Correcting a CHRI (a) Persons or their attorneys desiring access to their CHRI for the purpose of challenge or correction shall appear at the central repository. (b) A copy shall be provided to a person if after review he/she indicates he/she needs the copy to pursue the challenge. (c) Any person making a challenge shall identify that portion of his/her CHRI which he/she believes to be inaccurate or incorrect, and shall also give a correct version of his/her record with an explanation of the reason that he/she believes his/her version to be correct. (d) The director shall take the following actions within 30 days of receipt of challenge: (1) Review the records and contact the law enforcement agency or court which submitted the record to compare the information to determine whether the challenge is valid; (2) If the challenge is valid, which means there is a discrepancy between the information submitted and the information maintained by the law enforcement agency or court, the record shall be corrected and the person and appropriate CJAs shall be notified; and (3) If the challenge is invalid, the person shall be informed and advised of the right to appeal pursuant to RSA 541. (e) When a record has been corrected, the division shall notify all non-criminal justice agencies, to whom the data has been disseminated in the last year, of the correction. (f) The person shall be entitled to review the information that records the facts, dates, and results of each formal stage of the criminal justice process through which he passes, to ensure that all such steps are completely and accurately recorded.

☐ To prevent a delay in processing, I have enclosed a self-addressed envelope. ☐ Prepaid Acc't Number _____
A \$25.00 fee is required for each request. Make checks payable to: State of NH - Criminal Records.

New Hampshire Department of Safety
DIVISION OF STATE POLICE

WHAT HAPPENS AFTER YOU FILE

Petition to annul the record of a matter that has been vacated

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

This page is guidance. It is not a filing, it is not signed, and there is nothing on it to hand to a clerk.

WHERE THE PETITION GOES.

The committed record states it in its own words: "File NHJB-2317-DSe with the clerk of the court whose conviction was vacated, one petition per charge." One offence, one petition; NHJB-2317 says so itself, in capitals, on its own face.

WHAT THE COURT DOES NEXT, AND WHO ELSE SEES THE PETITION.

The record states who is told: "The court provides a copy of the petition to the prosecutor of the underlying offence under RSA 651:5, IX." You do not serve anybody. The record's own service rule for this route is: "None by the participant."

The petition's own text says the court considers an investigation and report prepared by the Department of Corrections and any response filed by the State, and that the court may decide the petition without a hearing unless you asked for one. If you want a hearing, you must tick the box on the petition that asks for it before you file - there is no box on this page and nothing here requests one for you.

THE MONEY THAT MAY STILL BE OWED AFTER YOU FILE.

The record states the cost of this route: "\$125.00 per court location. Whether the RSA 651:5, IX \$100 Department of Corrections investigation fee and the Department of Safety and state police fees apply is unresolved and is recorded below; on the face of the statute the exemptions do not reach a vacated conviction, so the packet should assume they are payable."

It records the question about the agency fees as open, and it is still open: "Whether the fee exemptions in RSA 651:5, IX and X(d), which are written around not-guilty, dismissed and not-prosecuted cases under paragraph II, reach a vacated conviction. On the face of the statute they do not, and paragraph IX was read at gc.nh.gov on 2026-08-06 without resolving it." Nothing in this packet answers it. Ask the clerk, and ask the Department of Corrections, what each of them will charge you.

If you cannot pay, the record names the papers to file instead: "Motion for Waiver of Filing Fee, NHJB-2311, with the Statement of Assets and Liabilities, NHJB-2328. Indigency also exempts the Department of Corrections and Department of Safety fees under RSA 651:5, IX." Both of those papers are in this packet, and both are filed with the petition rather than sent anywhere afterwards.

IF THE COURT GRANTS THE PETITION.

Page 3 of NHJB-2317 is the court's own page: it is marked FOR COURT USE ONLY, it is where the court records granting the annulment on one of the three grounds printed there, and it carries the list of who the court sends copies to - the prosecutor, the Department of Safety Criminal Records, the Division of Motor Vehicles and the Department of Corrections. That distribution is the court's to make. Nothing on it is yours to complete and nothing in this packet does it for you.

IF THE COURT DENIES THE PETITION.

The committed record lists among the exclusions from this route: "A further petition within 3 years of a denial, barred by RSA 651:5, IV." A denial therefore has a cost beyond the fee you already paid: it closes the route for three years. That is a reason to read the certification on page 2 of the petition before you swear to it, not after.

YOUR OWN CRIMINAL HISTORY RECORD, WHICH DOES NOT GO TO THE COURT.

NHJB-2956 in this packet is a request to the State Police Criminal Records Unit for your own record. It is not filed with the petition and it is not sent to the clerk. The committed record calls it "the only practical way to build the complete record list that RSA 651:5, VI makes decisive" where you have other New Hampshire cases. Section II of that form releases your record to somebody else; leave it blank.

WHERE SELF-HELP ENDS.

This packet prepares four official forms and it decides nothing. The committed legal-design record for this route names 10 points where preparing your own papers stops being enough. They are set out below in that record's own words. If any one of them describes your case, stop here and get advice from a lawyer licensed in New Hampshire before you file.

- Obtaining the vacatur itself, which is post-conviction litigation and outside scope.
- Any dispute about whether the order is a vacatur.
- Prosecutor opposition.
- The participant requests a hearing.
- Multiple charges across multiple courts, which means multiple petitions and multiple filing fees.
- Federal, military, tribal or out-of-state records.
- A prior annulment petition denied within the last 3 years, because RSA 651:5, IV bars a further petition more frequently than every 3 years.
- The participant needs the annulment recognized federally or for immigration. It will not be.
- The participant expects a private background-check database to remove the record. RSA 651:5, XVII says it need not.
- The participant expects annulment to restore firearm rights. It does not.

The clerk of the court that handled your matter can tell you what the court requires procedurally, but a clerk cannot give you legal advice. This packet names no legal-aid organisation and no referral line, for the same reason it prints no courthouse address: the platform holds no sourced New Hampshire directory, and an invented one in a filing instruction is worse than none.

Route: obligation:track-only:NH:nh_petition_vacated

WHAT AN ANNULMENT DOES, AND WHAT IT DOES NOT DO

Petition to annul the record of a matter that has been vacated

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

This page is guidance. It is not a filing, it is not signed, and there is nothing on it to hand to a clerk. It is here because the packet-set manifest requires this route to disclose the effect of the order and its limits before you file, and because several of the limits below cost money or mislead people who have not been told them.

WHAT THE RECORD SAYS THE ORDER DOES. THIS IS THE COMMITTED RECORD'S OWN DESCRIPTION, QUOTED WHOLE:

"A person convicted of a criminal offence whose conviction was subsequently vacated by a court may petition for annulment where the offence falls outside the automatic route in paragraph II-a. There is no waiting period. Relief is discretionary under paragraph I and the court may decide without a hearing unless the petitioner requests one. The procedure, the form family, the investigation, the prosecutor's opportunity to be heard and the effect are the same as on the pre-2019 non-conviction petition; the difference is cost, because the RSA 651:5, IX and X(d) fee exemptions are written around not-guilty, dismissed and not-prosecuted cases and on the face of the statute do not reach a vacated conviction. Under RSA 651:5, X(a) the person is treated in all respects as if never arrested, convicted or sentenced. Court records are sealed with the limited access list at X(c). The arresting and prosecuting agencies must clearly identify the annulment in their files and electronic records. Law enforcement retains records under XI(b) and may share them for legitimate investigative purposes, in defense of a civil suit arising from the arrest, and with the police standards and training council. A prior conviction may still be considered at sentencing on a later crime and may count toward habitual offender status under RSA 259:39. Under XVI and XVII no journalist, person or entity faces any penalty for publishing an annulled record or for not removing or correcting an earlier report, which is the statutory reason private background-check databases keep showing the case."

THE ONLY QUESTION YOU CAN BE ASKED, ONCE THE RECORD IS ANNULLED.

The record states: "RSA 651:5, X(f) prescribes the only permitted form of inquiry: "Have you ever been arrested for or convicted of a crime that has not been annulled by a court?" This is directly useful participant-facing content and the reference does not carry it."

So an annulment does not make it a lie to answer that question honestly. It changes what the honest answer is.

WHAT IT DOES NOT DO. THE RECORD RECORDS THESE AS SCOPE RESTRICTIONS, IN ITS OWN WORDS:

- Annulment does not restore firearm rights and has no federal or immigration effect
- RSA 651:5, XVII means private databases need not correct
- Paragraph XII is repealed, so disclosure is not a crime
- That New Hampshire expunges, deletes or destroys records.

Read the second of those twice. RSA 651:5, XVII is the statutory reason a private background-check company can keep showing a case a New Hampshire court has annulled, and the record says so in terms: no person or entity faces any penalty for publishing an annulled record or for not removing or correcting an earlier report. An annulment is a court order about the court's and the agencies' records. It is not a deletion, and the record lists among the same restrictions the claim "That New Hampshire expunges, deletes or destroys records."

WHO IS OUTSIDE THIS ROUTE ALTOGETHER. THE RECORD'S OWN EXCLUSIONS:

- Vacated convictions inside paragraph II-a, which are annulled automatically with no petition and no fee.
- An order that is a reversal, a set-aside, a new trial order or a sentence modification rather than a vacatur.
- Federal, military, tribal and out-of-state records.
- A further petition within 3 years of a denial, barred by RSA 651:5, IV.

The first of those matters most on this route: where the vacated conviction falls INSIDE paragraph II-a it is annulled automatically, with no petition and no fee. If that is your case, filing this petition pays \$125.00 for something the statute already gives you. Ask the clerk which side of paragraph II-a your offence falls on before you file.

WHAT NOBODY WHO PREPARED THIS PACKET MAY ASSERT FOR YOU.

- All Track 3 limits. Add: the vacatur itself is post-conviction litigation and is out of scope; the participant must already hold the vacatur order.
- That the applicant is rehabilitated or that annulment is consistent with the public welfare. Those are the court's findings under paragraph I and the certificate under X(b).

Relief on this route is discretionary. Whether you are rehabilitated, and whether annulment is consistent with the public welfare, are findings the court makes under paragraph I. This packet asserts neither, and no sentence in it should be read as evidence of either.

Every sentence quoted on this page is quoted from data/record-clearing/legal-design-track-registry.json, bound by SHA-256 in source-receipt.json, or from the New Hampshire legal-design memo bound beside it. Nothing on this page is legal advice and nothing on it decides whether you are eligible.

Route: obligation:track-only:NH:nh_petition_vacated